

PR-25-000754 IN THE MATTER OF THE GEORGE GARY VENIOT LIVING TRUST – Petitioner Tawna Veniot’s Motion to Appoint Receiver - HEARING REQUIRED.

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2012-04-02

Motion: The Court intends to DENY Petitioner Tawna Veniot’s unopposed Motion to Appoint Receiver WITHOUT PREJUDICE at this time. Petitioner Tawna Veniot moves for appointment of a receiver to take possession of the real property located at 1921 Santina Court, Modesto, California, evict occupants, prepare the property for sale, market the property, and sell the property pending resolution of the parties’ competing claims concerning trusteeship and ownership. The motion was properly served on respondents Dana Garth and Richard Pomares. They have not filed any opposition. The Court recognizes that it possesses authority to appoint a receiver in an appropriate trust proceeding pursuant to Code of Civil Procedure section 564 and Probate Code section 15642(e). However, receivership is an extraordinary remedy and should be employed only where necessary to preserve property and where less drastic remedies are inadequate. The present record reflects a genuine dispute concerning the identity of the lawful successor trustee and the parties’ respective rights regarding the subject property. The record further contains evidence suggesting the property may require maintenance and repairs. Petitioner relies in substantial part upon allegations contained in respondents’ filings concerning termite damage, HVAC issues, and other deferred maintenance concerns. At present, however, petitioner has not provided sufficient evidence establishing imminent irreparable injury, active dissipation of the property, or circumstances requiring the immediate displacement of occupants and sale of the residence. The Court is also concerned that the requested receivership would grant relief extending well beyond preservation of the asset and could effectively alter possession and control of the property before resolution of the underlying trust dispute. Additionally, the record suggests the trust may lack liquid assets. The Court notes that appointment of a receiver, standing alone, does not solve an insolvency problem. A receiver is not a source of funding and may instead create additional administrative expenses payable from the disputed asset. Accordingly, the Court is inclined to deny the motion without prejudice and instead consider issuance of narrowly tailored preservation orders designed to maintain the status quo and protect the property pending adjudication of the underlying petitions. The Court wishes to hear from the parties regarding the propriety and scope of the following proposed preservation orders: No party shall sell, transfer, encumber, lease, refinance, or otherwise dispose of the property without further court order. The current occupants shall maintain existing utility services reasonably necessary to preserve the property. The current occupants shall maintain existing homeowner’s insurance coverage and provide proof of coverage upon request. All parties shall refrain from committing waste or permitting avoidable deterioration of the property. A neutral inspection of the property shall be conducted to assess structural conditions, termite issues, HVAC condition, and other material maintenance concerns. The parties shall cooperate with reasonable inspection requests and provide access to the property upon reasonable notice. The Court will hear argument regarding whether such preservation measures are appropriate and whether any additional or modified protective orders are necessary pending final resolution of the trust dispute. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

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The present record reflects a genuine dispute concerning the identity of the lawful successor trustee and the parties' respective rights regarding the subject property. The record further contains evidence suggesting the property may require maintenance and repairs. Petitioner relies in substantial part upon allegations contained in respondents' filings concerning termite damage, HVAC issues, and other deferred maintenance concerns.

At present, however, petitioner has not provided sufficient evidence establishing imminent irreparable injury, active dissipation of the property, or circumstances requiring the immediate displacement of occupants and sale of the residence. The Court is also concerned that the requested receivership would grant relief extending well beyond preservation of the asset and could effectively alter possession and control of the property before resolution of the underlying trust dispute.

Additionally, the record suggests the trust may lack liquid assets. The Court notes that appointment of a receiver, standing alone, does not solve an insolvency problem. A receiver is not a source of funding and may instead create additional administrative expenses payable from the disputed asset.

Accordingly, the Court is inclined to deny the motion without prejudice and instead consider issuance of narrowly tailored preservation orders designed to maintain the status quo and protect the property pending adjudication of the underlying petitions.

The Court wishes to hear from the parties regarding the propriety and scope of the following proposed preservation orders:

No party shall sell, transfer, encumber, lease, refinance, or otherwise dispose of the property without further court order.

The current occupants shall maintain existing utility services reasonably necessary to preserve the property.

The current occupants shall maintain existing homeowner's insurance coverage and provide proof of coverage upon request.

All parties shall refrain from committing waste or permitting avoidable deterioration of the property.

A neutral inspection of the property shall be conducted to assess structural conditions, termite issues, HVAC condition, and other material maintenance concerns.

The parties shall cooperate with reasonable inspection requests and provide access to the property upon reasonable notice.

The Court will hear argument regarding whether such preservation measures are appropriate and whether any additional or modified protective orders are necessary pending final resolution of the trust dispute.

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